

Exploitation of intellectual property rights in recent studies

"Use only studies from the last 10 years, excluding case studies." *Generated by LeapSpace*

Last 10 years, excluding case studies

Studies from 2016-2026 mostly frame IP rights exploitation as a value-capture problem: firms and institutions use patents, licensing, secrecy, complementary assets, and enforcement to convert IP into revenue, bargaining power, or market position. That pattern is consistent with the earlier definition of IP exploitation as commercialization, licensing, transfer, sale, enforcement, and strategic appropriation [1] [2].

Theme	What the recent studies say	Representative studies
Commercialization and licensing	Licensing is repeatedly treated as a central commercialization channel, with value depending on bargaining power, prior experience, and contract design [1] [43] [44].	[1], [43], [44], [45], [46], [47]
Appropriation and secrecy	Firms often combine patents with secrecy, lead time, and complementary assets; patents are not the only appropriation tool [48] [49] [50] [51] [52] [53].	[48], [49], [50], [54], [52], [53]
Bargaining power and complementary assets	Value capture improves when firms control bargaining power or specialized complementary assets, but these effects are context-dependent [55] [56] [57] [58] [59].	[55], [56], [57], [58], [59]
Technology transfer and diffusion	Stronger IP protection can support technology transfer, licensing, and diffusion in some settings, but the effects vary by country, sector, and development level [60] [61] [62] [63] [64].	[60], [61], [62], [63], [64]
Competition and enforcement	Enforcement can raise productivity, exports, and M&A activity, but overly aggressive enforcement or abusive litigation can also create anticompetitive costs [22] [61] [65] [66] [67] [68] [69] [70].	[65], [22], [66], [67], [61], [68], [69], [70]

Bottom line

The recent literature does **not** treat exploitation of IP rights as simple ownership; it treats it as a **portfolio of commercialization and control strategies** whose payoff depends on bargaining power, secrecy, complementary assets, and enforcement context [48] [50] [56] [59]. Across the last decade, the dominant tension is that IP rights can both **facilitate diffusion and investment** and **support exclusion, rent capture, and competition harms** [60] [61] [64] [70] [71].

Confidence level: **High** — the included 2016-2026 studies consistently support the same core trade-off, with variation mainly in context and mechanism [43] [59] [60] [64].

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